

25CHCV01756 25CHCV01756

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Dept. F-46

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PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OF MINOR
AYLIAHNA PEREZ

Motion filed on July 31, 2026.

MOVING PARTY: Karen Bastian, as Guardian Ad Litem for
Aylihna Perez

RESPONDING PARTY: None

NOTICE: Defective. No proof of service of the petition
appears in the filing provided to the Court.

RELIEF REQUESTED: Approval of the \$25,000 settlement of
minor Aylihna Perez's claims against Lira S. Torres, including \$10,000 in
attorney's fees, \$435 in costs, \$4,537.23 in medical expenses, and deposit of
the \$10,027.77 net recovery into a blocked account.

RULING: Denied without prejudice.

BACKGROUND

On July 31, 2026, Petitioner filed a Petition for Approval of Compromise of Pending Action on behalf of Aylihna Perez, together with proposed forms MC-351 and MC-355.

The petition reflects a gross settlement of \$25,000.00, with \$4,537.23 in medical expenses, \$10,000.00 in attorney's fees, and \$435.00 in costs, leaving \$10,027.77 for deposit into a blocked account. (Petition, MC-350, items 15-16.)

No proof of service of the petition was filed.

DISCUSSION

Notice

The petition is not accompanied by a proof of service. The Court therefore cannot make the finding required by form MC-351 that notice was given as required by law.

Current Condition and Medical Report

Item 8(a) states that the minor has recovered completely and has no permanent injuries. (Petition, MC-350, item 8(a).) The medical records submitted do not establish that representation. Although item 7 describes only chiropractic treatment ending in 2023, the attached records show additional evaluation and treatment in 2025. The most recent medical record concerning the minor, dated August 4, 2025, states that she continued to experience neck and right trapezius pain, had begun physical therapy, and reported that the pain interfered with daily life. The provider recommended continued physical therapy and follow-up after completion of therapy. (Petition, PDF pp. 89-93.) No later medical report concerning the minor establishes that she subsequently recovered completely.

Item 8 requires a doctor's report containing a diagnosis or prognosis and a report of the claimant's current condition. The renewed petition must accurately complete items 7 and 8 and include as Attachment 8 a current medical report addressing the minor's diagnosis, prognosis, and current condition.

Allocation of Settlement

Item 11 reflects that \$50,000 is being paid to Karen Bastian and \$25,000 to the minor arising from the same accident. (Petition, MC-350, item 11b(5), PDF p. 3.) Petitioner is identified as a plaintiff in the same action, but the petition does not include the required Attachment 11b(3) explaining the circumstances and the effect of Petitioner's claim and its disposition on the minor's compromise. The petition also does not include Attachment 11b(6) explaining the reasons for the apportionment. Item 11b(2), concerning whether Petitioner has a claim against the minor's recovery, is not completed.

The renewed petition must complete item 11 and provide the required Attachments 11b(3) and 11b(6).

Medical Expenses and Medi-Cal

Item 12 is incomplete. Item 12a(2) is blank even though the attached DHCS final lien reflects that Medi-Cal paid \$49.64. Item 12b(4) likewise does not state the amount paid by Medi-Cal, and neither item 12b(4)(a) nor 12b(4)(b) concerning notice to the Director of Health Care Services is selected. Item 12b(5)(a) also does not indicate whether there are statutory or contractual liens of medical service providers. (Petition, MC-350, item 12, PDF pp. 4-5.)

The attached February 2, 2024 DHCS letter states that Medi-Cal paid \$49.64 and reduced its reimbursement claim to \$37.23. (Petition, PDF pp. 101-104.) The letter also requires notification of additional injury-related services and states that DHCS may be entitled to additional reimbursement for Medi-Cal benefits not included in the stated amount. Because the petition contains treatment records from 2025, the renewed petition should include updated Medi-Cal lien information or confirmation that \$37.23 remains the final amount.

Attorney's Fees

Petitioner requests \$10,000.00 in attorney's fees, representing 40 percent of the minor's gross recovery. Counsel's declaration identifies the work performed and generally cites the nature and complexity of the matter, contingent risk, time and labor, and the result obtained. (Ghevondyan Decl. ¶¶ 4-6, Petition PDF p. 120.) Any renewed petition should provide sufficient factual information addressing the applicable factors under

California Rules of Court, rule 7.955 to permit the Court to determine the reasonableness of the requested fee.

Proposed Orders

The proposed MC-351 cannot be signed as submitted. Item 8a(2) authorizes \$14,972.23 as reimbursement for expenses paid by Petitioner or counsel, while item 8a(1) separately authorizes \$10,000.00 in attorney's fees and item 8a(3) separately authorizes \$4,537.23 in direct medical payments. (Proposed MC-351, item 8a, PDF p. 2.) These amounts do not add up to the \$14,972.23 total allowance stated in item 8a(5). A corrected MC-351 must accurately reflect the intended disbursements and total allowance.

The proposed MC-351 also leaves items 5, 6b, and 11 incomplete. Item 9a identifies Bank of America and its address but does not state the \$10,027.77 amount to be deposited as required by that item. (Proposed MC-351, PDF pp. 1, 3-4.) A corrected MC-351 must accurately reflect the deductions and complete the blocked-account provisions.

The proposed MC-355 otherwise reflects the \$10,027.77 deposit, the minor's date of birth, and the appropriate blocked-account withdrawal restrictions. (Proposed MC-355.) A corrected MC-355 consistent with the amended petition and corrected MC-351 should be submitted with any renewed petition.

CONCLUSION

The Petition to Approve Compromise of Pending Action on behalf of Ayliahna Perez is denied without prejudice.

Any renewed petition must correct the matters identified above and be accompanied by corrected proposed forms MC-351 and MC-355.